

STATE OF NEW MEXICO
COUNTY OF _____
_____ JUDICIAL DISTRICT COURT

In re _____, No.

Petitioner.

**ORDER ON PETITION TO EXPUNGE ARREST RECORDS AND
PUBLIC RECORDS PURSUANT TO NMSA 1978, SECTION 29-3A-3 (*Identity Theft*)**

THIS MATTER came before the Court on Petitioner's Petition to Expunge Arrest Records and Public Records Pursuant to NMSA 1978, Section 29-3A-3 (2019) (*Identity Theft*). The Court having reviewed the Petition, examined the record, considered any objections filed by the District Attorney, the Department of Public Safety (DPS), the law enforcement agency that made the arrest, and any other person or agency, and conducted a hearing, **FINDS and ORDERS** as follows:

(Check all that apply)

1. ☐ Petitioner was the victim of identity theft.
2. ☐ Petitioner's request is denied for all charges sought to be expunged.¹

OR

☐ Petitioner's request to expunge is denied for the following charges:²

¹ For use when the Petition is denied in whole.

² For use when Petition will be granted in part, and denied in part.

3. Petitioner is not entitled to relief under Section 29-3A-3 because:³

- ☐ Petitioner has failed to provide the required information and the Petition is summarily dismissed WITHOUT PREJUDICE.
- ☐ Petitioner's records are not legally eligible for expungement because Petitioner was not the victim of identity theft and was not wrongfully identified in arrest records or public records.
- ☐ Venue is improper because the charges did not originate in this district.
- ☐ Other:

4. ☐ Petitioner's request to expunge is granted for all charges requested.⁴

OR

☐ Petitioner's request to expunge is granted only for the following charges: ⁵

(Select from the following, as applicable)

IT IS THEREFORE ORDERED that Petitioner's Petition to Expunge Arrest Records and Public Records Pursuant to Section 29-3A-3 is:

☐ **DENIED.**

☐ **GRANTED.**

☐ **GRANTED IN PART AND DENIED IN PART.**

³ To be completed when any portion of the Petition is denied.

⁴ For use when the Petition will be granted in whole.

⁵ For use when the Petition will be granted in part and denied in part.

(Select as applicable for Petitions granted in whole or in part)

☐ **IT IS FURTHER ORDERED** that, in accordance with Section 29-3A-3, the arrest records and public records specifically relating to:

☐ All the charges requested in the Petition;

☐ The following charges:

And contained in:

District Court case number: _____

Appellate Court case number: _____

Magistrate/Municipal Court case number: _____

Metropolitan Court case number: _____

Law Enforcement Agency case number: _____

Arrest number (from fingerprint card): _____ Date: _____

Including information posted on a court or law enforcement website,

SHALL BE EXPUNGED.

☐ **IT IS FURTHER ORDERED** that the following agencies shall expunge the necessary records within _____ days of the date of this Order, the proceedings shall be treated as if they never occurred, and upon inquiry in the matter, Petitioner and officials to whom this Order is directed may properly reply that no such records exist with respect to such person.

☐ District Attorney for the _____ district

☐ New Mexico Department of Public Safety

☐ Arresting agency _____

☐ Other: _____

☐ Other: _____

☐ Other: _____

☐ **IT IS FURTHER ORDERED** that the court clerk for the (*indicate the court that originally disposed of the charges*) ☐ District Court for the _____ Judicial District, ☐ Metropolitan Court in _____ (*location*), ☐ Magistrate Court in _____ (*location*), or ☐ Municipal Court in _____ (*location*) shall expunge the necessary records within _____ days of the date of this Order, the proceedings shall be treated as if they never occurred, and upon inquiry in the matter, Petitioner and officials to whom this Order is directed may properly reply that no such records exist with respect to such person.

(*For use when the correct offender was provided notice of the hearing on the Petition to expunge.*)

☐ **IT IS FURTHER ORDERED** that this Order grants expungement as a result of identity theft, and the arrest records and public records shall be corrected to reflect the following name and contact information of the correct offender pursuant to Section 29-3A-3(D):

Name of actual offender: _____

Contact information: _____

Date: _____

District Court Judge